RESOLUTION NO. 26-058

CONSIDERATION AND APPROVAL OF A RESOLUTION (i) CALLING AND GIVING NOTICE OF THE SUBMISSION TO SOUTH EL MONTE VOTERS OF A BALLOT MEASURE TO REVERT THE ELECTIVE OFFICE OF MAYOR TO AN APPOINTIVE POSITION SELECTED BY THE CITY COUNCIL FROM AMONG ITS MEMBERS; (ii) ACKNOWLEDING CITY COUNCIL APPROVAL OF AN ORDINANCE EFFECTUING THE FOREGOING AMENDMENTS; (iii) ORDERING THAT THE BALLOT MEASURE SUBMITTED AS PART OF THE CITY'S NOVEMBER 3, 2026 GENERAL MUNICIPAL ELECTION; (iv) REQUESTING THAT THE LOS ANGELES COUNTY BOARD OF SUPERVISORS INCLUDE THE BALLOT MEASURE AS PART OF CITY'S PRIOR ELECTION CONSOLIDATION REQUEST; (v) REQUESTING THAT THE REGISTRAR-RECORDER/COUNTY CLERK PROVIDE SPECIFIC ELECTION ADMINISTRATION SERVICES, INCLUSIVE OF THE BALLOT MEASURE; AND (vi) SETTING PRIORITIES FOR FILIING WRITTEN ARGUMENTS AND REBUTTALS REGARDING THE BALLOT MEASURE AND DIRECTING PREPARATION OF AN IMPARTIAL ANALYSIS

WHEREAS, Government Code Sections 34900 through 34904, and in particular Government Code Section 34902, subdivision (b), provides the voters of a city, after having approved a measure establishing the office of mayor as an elective office, may, by subsequent ballot measure, eliminate the office as an elective office and restore the office to a position whose occupant is selected by the City Council from among its members at least every two years following the certification of election results at a city's general municipal election; and

WHEREAS, the City Council of the City of South El Monte ("City Council") desires to exercise its authority under Government Code Section 36502(b), and hereby submits to South El Monte voters a ballot measure (the "Measure") to eliminate the elective office of Mayor and provide that the Mayor shall instead be selected by the City Council from among its own members; and

WHEREAS, if the Measure is approved by the electors, the elective office of Mayor shall be eliminated upon the expiration date of the current incumbent Mayor's term, such that the incumbent Mayor shall be permitted to complete their current term of office as Mayor, and thereafter, the procedure of selection of the Mayor by the City Council shall be reestablished; and

WHEREAS, concurrent with the approval of this Resolution, the City Council has also approved for first reading an ordinance (hereinafter, "the Ordinance") which, if the Measure is approved by South El Monte voters, would eliminate the elective office of Mayor and provide for annual selection of the Mayor by the City Council (A true and correct copy of the Ordinance is attached to this Resolution as **Exhibit "A"**); and

WHEREAS, at its Regular Meeting of June 2, 2026, the City Council approved Resolution No. 26-037, which (1) called for and gave notice of a general municipal election to be held on Tuesday, November 3, 2026, and (2) requested that the Los Angeles County Board of Supervisors ("Board") authorize and direct the Los Angeles County Registrar-Recorder/County Clerk (hereinafter, "the County") to consolidate the City's November 3, 2026 election with the County-

administered election(s) of the same date; and

WHEREAS, the City shall compensate the County for all necessary expenses incurred by the County in providing the municipal election administration services for the City, including any such additional costs arising out of the placement of the above-described ballot measure on the City's November 3, 2026 ballot; and

WHEREAS, the City Council also wishes to (i) establish deadlines and rules for the submission of written arguments and rebuttals for and against the Measure in accordance with applicable Elections Code procedures; (ii) direct the timely preparation of the City Attorney's impartial analysis; and (iii) provide such other direction as may be necessary to facilitate the placement of the Measure on the ballot.

WHEREAS, the City Council approves the printing of the information for said election in the foreign languages requiring translation pursuant to the Voting Rights Act of 1965 and California Election Code Section 14201.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF SOUTH EL MONTE, CALIFORNIA, DOES RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

SECTION 1. Recitals. The City Council hereby finds and determines that the foregoing Recitals are true and correct, are incorporated herein and by this reference made an operative part thereof.

SECTION 2. Ballot Measure Question. The City Council does hereby order that the Measure shall be presented and printed upon the ballot submitted to the qualified voters in the manner and form set forth herein. There shall be printed substantially the following ballot question in compliance with Elections Code Sections 9051, 13119(b) and 13247:

City Council Reform Measure Shall the voters amend the South El Monte Municipal Code to return to five elected City Council members and a Mayor selected from among the five elected City Council members?	YES [ ] NO [ ]

The City Council further requests that the City be granted the letter designation **"SM"**, if available, such that the Measure may be identified on the ballot as "**Measure "SM"**. If the letter designation "**SM**" is unavailable, it is requested that the following alternative letter designations be given in order of preference: "**RM**" and "**RT**", also if available.

SECTION 3. Election Procedures.

A. The ballots to be used at the election shall be in form and content as required by law.

B. Pursuant to the requirements of Elections Code Sections 10002 and10403, the City respectfully requests that the County's governing Board of Supervisors consent and agree to the following:

1. That the November 3, 2026 Municipal Election, called by the City to present South

El Monte voters with a City-initiated ballot measure seeking approval of the Ordinance be consolidated with the County-administered Statewide General Election of the same date; and

2. That the County's governing Board of Supervisors consent to having the County render full election services to the City as may be requested by the South El Monte City Clerk (hereinafter, the "City Clerk") with the understanding and agreement that the County will be reimbursed by the City in full for all services so provided; and

3. That the requested election services include: the preparation, printing and mailing of sample ballots and polling place cards; the establishment or appointment of precincts, polling places, and election officers, the preparation, printing, mailing and furnishing of vote-by-mail ballots, making such publications as are required by law in connection therewith; the furnishing of ballots, voting booths and other necessary supplies or materials for polling places; the canvassing of the returns of the election and the furnishing of the results of such canvassing to the City Clerk of the City of South El Monte and the performance of such other election services as may be requested by the City Clerk.

C. The City Clerk is authorized, instructed and directed to coordinate with the County of Los Angeles Registrar of Voters to procure and furnish any and all ballots, notices, printed matters and supplies, services, equipment and paraphernalia that may be necessary in order to properly and lawfully conduct the Election.

D. The polls for the Election shall be open at 7:00 a.m. the day of the election and shall remain open continuously from that time until 8:00 p.m. of the same day when the polls shall be closed, pursuant to Elections Code Section 10242, except as provided in Elections Code Section 14401.

E. In all particulars not recited in this Resolution, the Election shall be held and conducted as provided by law for the holding of municipal elections in the City.

F. Notice of the time, place, and holding of the Election is given and the City Clerk is authorized, instructed, and directed to give further or additional notice of the election, in time, form, and manner as required by law.

G. All ballots shall be tallied at a central counting place and not at the precincts. Said central counting place shall be at a ballot counting center designated by the County.

H. The County is authorized to canvass the returns of the City's Municipal Election.

I. The City Clerk shall receive the canvass from the County as it pertains to the Election on the Measure, and shall certify the results to the City Council, as required by law.

J. The City's Municipal Election will be held and conducted in accordance with the provisions of law regulating such elections, including without limitation, Elections Code Section 10418.

SECTION 4. Arguments; Rebuttals and Impartial Analysis.

A. Direct Arguments For and Against the Measure.

1. The City Council acknowledges Elections Code Sections 9282(b) and 9287 which provide as follows:

   (a) When a measure is placed on the ballot by a legislative body, the legislative body, or a member or members of the legislative body authorized by that body, or an individual voter who is eligible to vote on the measure, or *bona fide* association of citizens, or a combination of voters and associations, may file a 300 words or less written argument in favor of the measure; and

   (b) If more than one argument in favor of a measure is submitted, the City Clerk shall give preference and priority, in the order named, to the arguments submitted by the following person(s) and entities: (A) the legislative body, or member or members of the legislative body authorized by that body; (B) an individual voter, or *bona fide* association of citizens, or combination of a voter(s) and associations, who are the *bona fide* sponsors or proponents of the measure; (C) a *bona fide* associations of citizens; and (D) individual voters who are eligible to vote on the measure.

   Provided such argument is submitted by or before the deadline for submitting ballot arguments, the City Council, by motion, reserves the right to designate and delegate one (1) or more of its members to author an argument in favor of the City's measure and recognition of Elections Code Section 9283 which limits the number of signatories to the argument to five, prescribe a process or criteria for determining who should be selected to sign.

2. Arguments against the proposed ballot measure, if any, shall also be subject to the provisions of Elections Code Sections 9282 and 9287.

3. The deadline date and time for submitting arguments for or against the measure to the City Clerk is **August 13, 2026,** by **5:00 p.m.,** after which time no arguments for or against the measure will be accepted. Arguments for or against the measure **may not exceed 300 words** in length. Each argument shall be filed with the City Clerk, signed, and include the printed name(s) and signature(s) of the author(s) submitting it, or if submitted on behalf of an organization, the name of the organization, and the printed name and signature of at least one of its principal officers who is the author of the argument.

4. The City Clerk shall comply with all provisions of law establishing priority of arguments for printing and distribution to the voters, and shall take all necessary actions to cause the selected arguments to be printed and distributed to the voters.

B. Rebuttal Arguments.

1. Pursuant to Elections Code Sections 9285 and 9287, when the City Clerk selects the arguments for and against the City-initiated measure to be printed and distributed to the voters, the City Clerk will send a copy of the argument in favor

one week before the date of the November 3, 2026 election in a newspaper of general circulation in the City or as may otherwise be permitted by law. The notice shall be headed "Measure to be Voted On" in conspicuous type and shall be substantially in the following form:

"MEASURE TO BE VOTED ON
Notice is hereby given that the following measure is to be voted on at a general municipal election to be held in the City of South El Monte, on Tuesday, the 3rd day of November 2026.
[Text of synopsis of measure]
Dated _____

_____
City Clerk"

SECTION 7. Public Examination. Pursuant to Elections Code Section 9295, this measure will be available for public examination for no fewer than ten (10) calendar days prior to being submitted for printing in the voter information guide. The Clerk shall post notice in the Clerk's office of the specific dates that the examination period will run.

SECTION 8. CEQA. The City Council hereby finds and determines that the ballot measure relates to organizational or administrative activities of governments that will not result in direct or indirect physical changes in the environment, and therefore is not a project within the meaning of the California Environmental Quality Act ("CEQA") and the State CEQA Guidelines (Cal. Code Regs., tit. 14, § 15000 *et seq.*) Section 15378(b)(5).

SECTION 9. Severability. If any provision of this Resolution or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of the Resolution which can be given effect without the invalid provision or application, and to this end the provisions of this Resolution are severable. The City Council hereby declares that it would have adopted this Resolution irrespective of the invalidity of any particular portion thereof.

SECTION 10. Effective Date of Resolution. This Resolution shall take effect immediately upon its adoption. The City Clerk shall certify to the adoption of this Resolution which shall be effective upon its adoption. The City Clerk is hereby directed to file a certified copy of this Resolution with the County's governing Board of Supervisors and the Registrar-Recorder/County Clerk for the County of Los Angeles.

PASSED, APPROVED AND ADOPTED on this 21st day of July 2026.

of the measure to the authors of the argument against the measure, and a copy of the argument against the authors of the argument in favor of the measure.

2. The authors of the respective arguments for and against the measure or persons designated by them may then prepare and submit rebuttal arguments **not exceeding 250 words** in length. The deadline for submitting rebuttal arguments to the City Clerk is **August 24, 2026,** by **5:00 p.m.,** after which time no rebuttal arguments will be accepted. Rebuttal arguments shall be printed in the same manner as the direct arguments. Each rebuttal argument shall immediately follow the direct argument which it seeks to rebut.

C. City Attorney's Impartial Analysis. Pursuant to Elections Code Section 9280, the City Council directs the City Clerk to transmit a copy of the measure to the City Attorney so that the City Attorney may prepare an impartial analysis of the measure, not to exceed 500 words in length. The impartial analysis shall explain what the measure will do if approved and enacted and how that impacts/changes existing law. The City Attorney shall transmit its impartial analysis to the City Clerk, who shall cause the analysis to be published in the voter information guide along with the ballot measure as provided by law. The impartial analysis shall be filed no later than **August 13, 2026**. In the event the entire text of the measure is not printed on the ballot, nor in the voter information portion of the sample ballot, there shall be printed immediately below the impartial analysis, in no less than 10-font bold type, the following: "The above statement is an impartial analysis of Ordinance or Measure. If you desire a copy of the Ordinance or Measure, please call the City Clerk's Office at 626-579-6540 and a copy will be mailed at no cost to you."

D. Delivery of Materials. Any materials that must be submitted to the City Clerk must be delivered in person to the Office of the City Clerk located at **South El Monte City Hall, Office of the City Clerk, 1415 Santa Anita Avenue, South El Monte, California 91733**. Except as otherwise provided in this paragraph, materials delivered to the City Clerk must be delivered during regular business hours, which are Monday through Thursday from 7:00 A.M. to 5:30 P.M.

SECTION 5. Manner of Placement on the Ballot. The City Clerk has delegated discretion to direct the County to undertake one of the following placement options: (a) Print a 75 word abbreviated ballot measure text (prescribed by law) only; (b) Print a 75 word abbreviated ballot measure text and include Official Sample Ballot Notice advising voters to call the City Clerk's Office and request a free copy of the ballot measure enclosure (OR) that the City will be sending voters a supplemental mailing; or (c) Print a 75 word abbreviated ballot measure text and include Full Ballot Measure Enclosure Text in the Official Sample Ballot Booklet.

SECTION 6. City Clerk Tasks.

A. Delivery of Resolution to County: The City Clerk shall certify to the passage and adoption of this Resolution and enter it into the Book of Original Resolutions. The City Council directs the City Clerk to deliver copies of this Resolution, including the Ordinance to the Clerk of the County's governing Board of Supervisors and to the Registrar-Recorder/County Clerk for the County of Los Angeles.

B. Publication of Ballot Measure Synopsis: As required by Elections Code Section 12111, the City Clerk shall publish a synopsis of the measure at least one time, not later than

Gloria Olmos

Gloria Olmos, Mayor

I DO NOT AGREE WITH THIS

ATTEST:

Adrian Garcia, MMC, City Clerk

STATE OF CALIFORNIA)
COUNTY OF LOS ANGELES) SS:
CITY OF SOUTH EL MONTE)

I, Adrian Garcia, City Clerk of the City of South El Monte, hereby certify that the foregoing Resolution No. 26-058, was passed and adopted by the City Council of the City of South El Monte at a regular meeting held on the 21st day of July 2026, and that said Resolution was adopted by the following vote, to-wit:

AYES:	Councilmember(s):	Delgado, Rodriguez, Mayor Pro Tem Bojorquez
NOES:	Councilmember(s):	Acosta, Mayor Olmos
ABSENT:	Councilmember(s):	None

Adrian Garcia, MMC, City Clerk



EXHIBIT "A"

FORM OF ORDINANCE

ORDINANCE NO. 1296

AN ORDINANCE OF THE PEOPLE OF THE CITY OF SOUTH EL MONTE, CALIFORNIA ELIMINATING THE ELECTIVE OFFICE OF MAYOR AND PROVIDING FOR SELECTION OF THE MAYOR BY THE CITY COUNCIL PURSUANT TO GOVERNMENT CODE SECTIONS 34900 THROUGH 34904, AND MAKING CORRESPONDING AMENDMENTS TO THE SOUTH EL MONTE MUNICIPAL CODE TO REFLECT THIS CHANGE

WHEREAS, the City of South El Monte ("City") is a general law city incorporated under the laws of the State of California; and

WHEREAS, pursuant to Government Code Section 34902, subdivision (b), after an office of elective mayor has been established, the City Council may submit to the electors the question of whether to eliminate the elective office of Mayor and thereby reestablish selection of the Mayor by the City Council; and

WHEREAS, at its Regular Meeting of June 2, 2026, the South El Monte City Council approved Resolution No. 26-037, which called for an Election to be held on November 3, 2026, and consolidated with the County-administered election(s) of the same date; and

WHEREAS, in addition to the election contests called for under Resolution No. 26-037, the City Council also called for South El Monte voters to consider a ballot measure and related ordinance that eliminates the elective office of Mayor and reestablishes selection of the Mayor by the City Council (the "Measure"); and

WHEREAS, the ballot question presented to South El Monte voters was as follows:

City Council Reform Measure Shall the voters amend the South El Monte Municipal Code to return to five elected City Council members and a Mayor selected from among the five elected City Council members?	YES [ ]
	NO [ ]

WHEREAS, this Ordinance was provisionally approved by the City Council for first reading and second reading on July 21, 2026 and _____, 2026, respectively, subject to the requirement that the ballot measure authorizing the implementation of this Ordinance is in fact approved by South El Monte voters at a general municipal election held November 3, 2026; and

WHEREAS, the ballot measure seeking approval of this Ordinance was approved by a simple majority of votes cast at the City's municipal election of November 3, 2026, by a final count of _____ "Yes" votes (or _____% "Yes") to _____ "No" votes (or _____% "No"); and

WHEREAS, at its meeting of July 21, 2026, the City Council approved Resolution No. 26-058 which acknowledged the conduct of the November 3, 2026 municipal election, and declared the results of the same: the ballot measure authorizing the implementation of this Ordinance was approved by South El Monte voters.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF SOUTH EL MONTE, CALIFORNIA DOES HEREBY ORDAIN AS FOLLOWS:

SECTION 1. The recitals above are true and correct and incorporated herein by reference.

SECTION 2. In recognition of the results of the City's Municipal Election held November 3, 2026, the elective office of "Mayor," as referenced throughout the South El Monte Municipal Code and other policies of the City, is hereby eliminated and the Mayor shall instead be selected by the City Council from among its own members, in accordance with Government Code Sections 34900 through 34904 and Section 36801. Consistent with Government Code Section 34902, subdivision (b), the elimination of the elective office of Mayor shall take effect upon the expiration of the term of the incumbent elected Mayor who was serving at the time of the November 3, 2026 Election, and the incumbent Mayor shall be permitted to serve the remainder of that term as Mayor. Upon that date, the seat currently designated as the office of Mayor shall thereafter be filled at the City's general municipal elections as a City Council seat and shall not appear on the ballot as a separately designated office of Mayor. This change affects only the manner in which the Mayor is selected; it does not alter the powers or duties of the office or reduce the number of members of the City Council, which shall remain at five (5) members.

SECTION 3. Section 2.16.050 (Mayor pro tem) and Section 2.16.060 (Elected mayor) of Chapter 2.16 (Mayor) of Title 2 (Administration and Personnel) of the South El Monte Municipal Code are hereby deleted in their entirety, and a new Section 2.16.050 entitled "Selection of Mayor and Mayor Pro Tem" is hereby added to Chapter 2.16 of the South El Monte Municipal Code to read as follows:

> ***2.16.050 Selection of Mayor and Mayor Pro Tem***
>
> *The council shall organize and select a mayor and mayor pro tem at either: (1) the first regular meeting in December in odd-numbered years; (2) at the time designated by applicable provisions of the government code; or (3) at such other time as a majority of the council shall so order.*

SECTION 4. All references in the South El Monte Municipal Code, and in the other policies and resolutions of the City, to the "Elected Mayor" or to the election of the Mayor shall, upon the effective date described in Section 2 above, be construed to refer to the Mayor selected by the City Council pursuant to Section 2.16.050 as amended by this Ordinance.

SECTION 5. It is understood that the amendments and modifications to the South El Monte Municipal Code as prescribed by this Ordinance are for purposes of harmonizing the

provisions of the South El Monte Municipal Code with the intent of the ballot question presented to South El Monte voters. Accordingly, any future modifications or amendments to the provisions modified or amended herein shall not require a subsequent vote of the people provided that any such modifications or amendments are consistent and are not in conflict with the requirement that the office of Mayor remain selected as opposed to elective.

SECTION 6. If any provision of this Ordinance or the application thereof to any person or circumstance is held invalid, the remainder of the Ordinance and the application of such provision to other persons or circumstances shall not be affected thereby.

SECTION 7. This Ordinance and the action taken hereunder is not a "project" within the meaning of the California Environmental Quality Act codified as Section 21000 *et seq.* of the *Public Resources Code* ("CEQA") because it will not result in a direct or reasonably foreseeable indirect physical change in the environment nor does it involve any commitment to any specific project which may result in a potentially significant physical impact on the environment.

SECTION 8. The Mayor shall sign and the City Clerk shall attest to the passage of this Ordinance, provided that this Ordinance shall not take effect unless the ballot measure making the office of Mayor a selected office is approved by South El Monte voters at the November 3, 2026 Election, as confirmed by the canvass of election results. The City Clerk shall timely cause the same to be published in the official newspaper once the Ordinance becomes effective. The Ordinance shall become effective upon the City Council's approval of a resolution Reciting the Fact of the City's November 3, 2026 Election and Declaring the Results of the Same.

ADOPTED by vote of the People of City of South El Monte on the 3rd day of November 2026, and declared and certified by the South El Monte City Council on the ___ day _____, 2026.

_____
Gloria Olmos, Mayor

ATTEST:

_____
Adrian Garcia, MMC, City Clerk

CERTIFICATION

I, Adrian Garcia, City Clerk of the City of South El Monte, California, do hereby certify that the foregoing is a full, true, and correct copy of Ordinance No. 1296 which was introduced for first reading by the South El Monte City Council ("City Council") at its Regular meeting of July 21, 2026 and was approved by the City Council for second reading at its Regular Meeting of _____ 2026, subject to approval by South El Monte voters at an Election held November 3, 2026. Following the approval of this Ordinance by South El Monte voters as reflected in City Council Resolution No. _____ dated July ___, 2026 which Recites the Fact of the November 3, 2026 Election and Declares the Results of the Same, the City Council finally approved this Ordinance by the following vote of the City Council:

AYES:

NAYS:

ABSENT:

ABSTAINED:

_____

Adrian Garcia, MMC, City Clerk